

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 12311 of 2016

Md. Harun Or Rashid

.....Convict-appellant.

-Versus-

The State

.....respondent.

None appears

.....For the convict- appellant.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.... For the respondent.

Heard and Judgment on 09.01.2024.

Sheikh Abdul Awal, J:

This Criminal Appeal at the instance of convict appellant, Md. Harun Or Rashid is directed against the impugned judgment and order of conviction and sentence dated 28.10.2015 passed by the learned Metropolitan Sessions Judge, Chittagong in Sessions Case No. 1270 of 2009 arising out of G.R. No. 512 of 2009 corresponding to Khulshi police Station Case No. 31 dated 22.05.2009 convicting the appellant and another under section 22(ga) of the Madok Drabbo Niyatron Ain, 1990 and sentencing them thereunder to suffer rigorous imprisonment for a period of 03(three)

years and to pay fine of Tk. 2,000/ (two thousand) in default to suffer imprisonment for 2(two) months more each.

The prosecution case, in short, is that one, Brojolal Chakma, Sub-Inspector, Madok Drabbo Niyatron Adhidaftar, Kotawali Circle, Chattogram Metro. Upanchal, Chattogram as informant on 22.05.2009 at about 10.05 hours lodged an Ejahar with Khulshi Police Station, Chattogram against the convict appellant and 2 others stating, inter-alia, that on 22.05.2009 at about 5:30 to 6:10 hours on the basis of a secret information the informant along with other members of the law enforcing agency raided the house of the accused appellant and accused Mostafa and recovered total 60 liters Cholai Mod (locally made wine) from under the bed of their house kept in a synthetic bag which valued at Tk. 18,000/-(eighteen thousand) and thereupon, police arrested the accused appellant and 2 others and police seized those goods by preparing seizure list in presence of witnesses.

Upon the aforesaid First Information Report, Khulshi police Station Case No. 31 dated 22.05.2009 under section 22(ga)/25 of the Madok Drabbo Niyatron Ain, 1990 was started against the accused appellant and others.

Police after completion of usual investigation submitted charge sheet No. 125 dated 30.06.2009 under Section 22(ga)/25 of the Madok Drabbo Niyatron Ain, 1990 against the accused-appellant and 2 others.

Ultimately, the accused appellant and 2 others were put on trial in the Court of the learned Metropolitan Sessions Judge, Chattogram in Sessions Case No. 1270 of 2009 arising out of G.R. No. 512 of 2009 corresponding to Khulshi Police Station Case No. 31 dated 22.05.2009 to answer a charge under section 22(ga)/25 of the Madok Drabbo Niyatron Ain, 1990 in which the accused-appellant and another pleaded not guilty and claimed to be tried stating that they have been falsely implicated in the case.

At the trial, the prosecution examined in all 3(three) witnesses and also exhibited some documents to prove its case, while the defence examined none.

On conclusion of trial, the learned Metropolitan Sessions Judge, Chattogram by the impugned judgment and order dated 28.10.2015 found the accused-appellant and another guilty under section 22(ga) of the Madok Drabbo Niyatron Ain, 1990 and sentenced them thereunder to suffer rigorous imprisonment for a period of 03(three) years and to pay fine of Tk. 2,000/-(two

thousand) in default to suffer imprisonment for 2(two) months more each while acquitted another accused Md. Mamun.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 28.10.2015 the accused-appellant, Md. Harun Or Rashid preferred this criminal appeal.

No one found present to press the appeal on repeated calls.

In view of the fact that this petty old criminal appeal arising out of 03(three) years sentence has been dragging before this Court for more than 11 years, I am inclined to dispose of it on merit on the basis of the materials on record.

Having heard the learned Deputy Attorney General, perused the memo of appeal, deposition of witnesses and other materials on record including the impugned judgment and order of conviction and sentence dated 28.10.2015.

On scrutiny of the record, it appears that PW-1, Brojolal Chakma, Sub-Inspector, Madok Drabbo Niyatron Adhidaftar as informant on 22.05.2009 at about 10:05 hours lodged an Ejahar with Khulshi police

Station, Chattogram against the accused appellant and 2 others on the allegation that the accused appellant and 2 others were apprehended along with 60 litters Cholai Mod (locally made wine). Police after completion of investigation submitted charge sheet against the accused appellant and 2 others under Section 22(ga)/25 of the Madok Drabbo Niyatron Ain, 1990 on 30.06.2009. It further appears that the prosecution to prove the charge examined in all 3 witnesses out of which PW-1, Brojolal Chakma as informant stated in his deposition that on the basis of a secret information the informant along with other members of the law enforcing agency raided the house of the accused Harun Or Rashid and Mostofa and on search recovered 60 litters Cholai Mod (local made wine) in presence of witnesses and thereafter, the informant party seized those local wine by preparing seizure list in presence of witnesses. This witness also stated in his evidence that the accused persons admitted their guilt and he forwarded some sample of seized wine for chemical examination. PW-2, Dhononjoy Chandra Debnath, member of the raiding party, who in his evidence corroborated the evidence of PW-1 in respect of all material particulars. PW-3, Md. Abul Kalam Azad, submitted the charge sheet against the accused appellant and 2 others under Section 22(ga)/25 of the Madok

Drabbo Niyatron Ain, 1990. This witness in his deposition also stated that during investigation he obtained chemical examination report, visited the place of occurrence and examined the witnesses under Section 161 of the Code of Criminal Procedure.

From the above, it appears to me that members of the raiding party in their respective evidence corroborated each other as recovery of total 60 litters Cholai Mod (locally made wine). If further appears that the accused persons on a query also admitted their guilt and all the prosecution witnesses proved the prosecution case as to the time, place and manner of occurrence and thus the prosecution proved the guilt of the accused appellant beyond reasonable doubt and accordingly.

On an analysis of the impugned judgment, it appears that the learned Metropolitan Sessions Judge, Chattogram on due consideration of the entire evidence and materials on record justly came to the conclusion that the prosecution has been succeeded to prove its case beyond doubts.

However, considering all these aspects of the case particularly the fact that the accused appellant has already been faced the agony of the protected

prosecution and suffered mental harassment for a long period and also having been suffered his sentence to some extent (pre and post trial), I think, the ends of justice, will be met in the facts and circumstance of the case, if the sentence of fine is maintained and the substantive sentence is reduced to the period already undergone.

Learned Deputy Attorney General, has, of course, been able to defend this case on merits but practically has nothing to say insofar as reduction of sentence imposed upon the appellant is concerned.

The appeal is, consequently, dismissed with modification of sentence that the sentence of appellant for the offence under section 22(ga) of the Madok Drabbo Niyatron Ain, 1990 is reduced to the period of sentence already undergone. Sentence of fine is, however, maintained. The accused-appellant, Md. Harun Or Rashid may be discharged from his bail bond, if he deposits the fine.

Send down the lower Court records at once.